

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

-----X
ANTOINE VINES,

Plaintiff,

-against-

CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT,
DETECTIVE STEPHEN PROSCIA,
SERGEANT AALOK KANTHARIA,
DETECTIVE ERIC GUTIERREZ,
POLICE OFFICER JAIR FLORES, and
DETECTIVE BRIAN MCCARTHY,

Defendant(s).
-----X

SUMMONS

Index No.: _____

Date Filed: _____

**Plaintiff designates
Kings County
as the place of trial.¹**

To the above-named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a Notice of Appearance, on Plaintiff's attorney(s) within twenty (20) days after the service of this Summons, exclusive of the day of service [or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York]; and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York
September 28, 2023

Yours, etc.,

ROTH & KHALIFE, LLP,
By: *Ronald H. Roth*
RONALD H. ROTH, ESQ.,
Attorney(s) for Plaintiff(s)

¹ The subject incident(s) giving rise to this lawsuit occurred within the County of Kings, State of New York.

14 Wall Street, Suite 1603
New York, New York 10005
Telephone: 212-608-3015
Facsimile: 212-208-2177

To:

CITY OF NEW YORK

Defendant

c/o New York City Corporation Counsel's Office
100 Church Street
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT

Defendant

c/o New York City Corporation Counsel's Office
100 Church Street
New York, NY 10007

DETECTIVE STEPHEN PROSCIA (Shield # 3926)

Defendant

c/o NYPD – 70th Precinct
154 Lawrence Ave.
Brooklyn, NY 11230

SERGEANT AALOK KANTHARIA

Defendant

c/o NYPD – 70th Precinct
154 Lawrence Ave.
Brooklyn, NY 11230

DETECTIVE ERIC GUTIERREZ

Defendant

c/o NYPD – 70th Precinct
154 Lawrence Ave.
Brooklyn, NY 11230

POLICE OFFICER JAIR FLORES

Defendant

c/o NYPD – 70th Precinct
154 Lawrence Ave.
Brooklyn, NY 11230

DETECTIVE BRIAN MCCARTHY

Defendant

c/o NYPD – 70th Precinct
154 Lawrence Ave.
Brooklyn, NY 11230

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

-----X
ANTOINE VINES,

Plaintiff,

COMPLAINT

-against-

Index No.: _____

CITY OF NEW YORK, and
NEW YORK CITY POLICE DEPARTMENT,
DETECTIVE STEPHEN PROSCIA,
SERGEANT AALOK KANTHARIA,
DETECTIVE ERIC GUTIERREZ,
POLICE OFFICER JAIR FLORES, and
DETECTIVE BRIAN MCCARTHY,

Defendant(s).

-----X

Plaintiff(s), by his/her/their attorney(s), ROTH & KHALIFE, LLP, as and for a Complaint, respectfully sets forth and alleges the following, upon information and belief:

COMMON ALLEGATIONS

1. That Plaintiff ANTOINE VINES was a resident of the County of Kings, State of New York.
2. That, at all times hereinafter mentioned, Defendant CITY OF NEW YORK was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. That, at all times hereinafter mentioned, Defendant CITY OF NEW YORK was a corporation doing business in the State of New York.
4. That, at all times hereinafter mentioned, Defendant CITY OF NEW YORK was doing business in the State of New York.

5. That, at all times hereinafter mentioned, Defendant CITY OF NEW YORK maintained its principal office in the State of New York.

6. That, at all times hereinafter mentioned, Defendant NEW YORK CITY POLICE DEPARTMENT was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.

7. That, at all times hereinafter mentioned, Defendant NEW YORK CITY POLICE DEPARTMENT was doing business in the State of New York.

8. That, at all times hereinafter mentioned, Defendant NEW YORK CITY POLICE DEPARTMENT maintained its principal office in the State of New York.

9. That, at all times hereinafter mentioned, Defendant NEW YORK CITY POLICE DEPARTMENT was an agency of Defendant CITY OF NEW YORK.

10. That, at all times hereinafter mentioned, Defendant DETECTIVE STEPHEN PROSCIA was a resident / domiciliary of the State of New York.

11. That, at all times hereinafter mentioned, Defendant DETECTIVE STEPHEN PROSCIA was an employee of Defendant CITY OF NEW YORK.

12. That, at all times hereinafter mentioned, Defendant DETECTIVE STEPHEN PROSCIA was an employee of Defendant NEW YORK CITY POLICE DEPARTMENT.

13. That, at all times hereinafter mentioned, Defendant DETECTIVE STEPHEN PROSCIA was an agent of Defendant CITY OF NEW YORK.

14. That, at all times hereinafter mentioned, Defendant DETECTIVE STEPHEN PROSCIA was an agent of Defendant NEW YORK CITY POLICE DEPARTMENT.

15. That, at all times hereinafter mentioned, Defendant DETECTIVE STEPHEN PROSCIA was a police officer for Defendant CITY OF NEW YORK.

16. That, at all times hereinafter mentioned, Defendant DETECTIVE STEPHEN PROSCIA was a police officer for Defendant NEW YORK CITY POLICE DEPARTMENT.

17. That, at all times hereinafter mentioned, Defendant DETECTIVE STEPHEN PROSCIA was a detective for Defendant CITY OF NEW YORK.

18. That, at all times hereinafter mentioned, Defendant DETECTIVE STEPHEN PROSCIA was a detective for Defendant NEW YORK CITY POLICE DEPARTMENT.

19. That, at all times hereinafter mentioned, Defendant SERGEANT AALOK KANTHARIA was a resident / domiciliary of the State of New York.

20. That, at all times hereinafter mentioned, Defendant SERGEANT AALOK KANTHARIA was an employee of Defendant CITY OF NEW YORK.

21. That, at all times hereinafter mentioned, Defendant SERGEANT AALOK KANTHARIA was an employee of Defendant NEW YORK CITY POLICE DEPARTMENT.

22. That, at all times hereinafter mentioned, Defendant SERGEANT AALOK KANTHARIA was an agent of Defendant CITY OF NEW YORK.

23. That, at all times hereinafter mentioned, Defendant SERGEANT AALOK KANTHARIA was an agent of Defendant NEW YORK CITY POLICE DEPARTMENT.

24. That, at all times hereinafter mentioned, Defendant SERGEANT AALOK KANTHARIA was a police officer for Defendant CITY OF NEW YORK.

25. That, at all times hereinafter mentioned, Defendant SERGEANT AALOK KANTHARIA was a police officer for Defendant NEW YORK CITY POLICE DEPARTMENT.

26. That, at all times hereinafter mentioned, Defendant SERGEANT AALOK KANTHARIA was a detective for Defendant CITY OF NEW YORK.

27. That, at all times hereinafter mentioned, Defendant SERGEANT AALOK KANTHARIA was a detective for Defendant NEW YORK CITY POLICE DEPARTMENT.

28. That, at all times hereinafter mentioned, Defendant DETECTIVE ERIC GUTIERREZ was a resident / domiciliary of the State of New York.

29. That, at all times hereinafter mentioned, Defendant DETECTIVE ERIC GUTIERREZ was an employee of Defendant CITY OF NEW YORK.

30. That, at all times hereinafter mentioned, Defendant DETECTIVE ERIC GUTIERREZ was an employee of Defendant NEW YORK CITY POLICE DEPARTMENT.

31. That, at all times hereinafter mentioned, Defendant DETECTIVE ERIC GUTIERREZ was an agent of Defendant CITY OF NEW YORK.

32. That, at all times hereinafter mentioned, Defendant DETECTIVE ERIC GUTIERREZ was an agent of Defendant NEW YORK CITY POLICE DEPARTMENT.

33. That, at all times hereinafter mentioned, Defendant DETECTIVE ERIC GUTIERREZ was a police officer for Defendant CITY OF NEW YORK.

34. That, at all times hereinafter mentioned, Defendant DETECTIVE ERIC GUTIERREZ was a police officer for Defendant NEW YORK CITY POLICE DEPARTMENT.

35. That, at all times hereinafter mentioned, Defendant DETECTIVE ERIC GUTIERREZ was a detective for Defendant CITY OF NEW YORK.

36. That, at all times hereinafter mentioned, Defendant DETECTIVE ERIC GUTIERREZ was a detective for Defendant NEW YORK CITY POLICE DEPARTMENT.

37. That, at all times hereinafter mentioned, Defendant POLICE OFFICER JAIR FLORES was a resident / domiciliary of the State of New York.

38. That, at all times hereinafter mentioned, Defendant POLICE OFFICER JAIR FLORES was an employee of Defendant CITY OF NEW YORK.

39. That, at all times hereinafter mentioned, Defendant POLICE OFFICER JAIR FLORES was an employee of Defendant NEW YORK CITY POLICE DEPARTMENT.

40. That, at all times hereinafter mentioned, Defendant POLICE OFFICER JAIR FLORES was an agent of Defendant CITY OF NEW YORK.

41. That, at all times hereinafter mentioned, Defendant POLICE OFFICER JAIR FLORES was an agent of Defendant NEW YORK CITY POLICE DEPARTMENT.

42. That, at all times hereinafter mentioned, Defendant POLICE OFFICER JAIR FLORES was a police officer for Defendant CITY OF NEW YORK.

43. That, at all times hereinafter mentioned, Defendant POLICE OFFICER JAIR FLORES was a police officer for Defendant NEW YORK CITY POLICE DEPARTMENT.

44. That, at all times hereinafter mentioned, Defendant POLICE OFFICER JAIR FLORES was a detective for Defendant CITY OF NEW YORK.

45. That, at all times hereinafter mentioned, Defendant POLICE OFFICER JAIR FLORES was a detective for Defendant NEW YORK CITY POLICE DEPARTMENT.

46. That, at all times hereinafter mentioned, Defendant DETECTIVE BRIAN MCCARTHY was a resident / domiciliary of the State of New York.

47. That, at all times hereinafter mentioned, Defendant DETECTIVE BRIAN MCCARTHY was an employee of Defendant CITY OF NEW YORK.

48. That, at all times hereinafter mentioned, Defendant DETECTIVE BRIAN MCCARTHY was an employee of Defendant NEW YORK CITY POLICE DEPARTMENT.

49. That, at all times hereinafter mentioned, Defendant DETECTIVE BRIAN MCCARTHY was an agent of Defendant CITY OF NEW YORK.

50. That, at all times hereinafter mentioned, Defendant DETECTIVE BRIAN MCCARTHY was an agent of Defendant NEW YORK CITY POLICE DEPARTMENT.

51. That, at all times hereinafter mentioned, Defendant DETECTIVE BRIAN MCCARTHY was a police officer for Defendant CITY OF NEW YORK.

52. That, at all times hereinafter mentioned, Defendant DETECTIVE BRIAN MCCARTHY was a police officer for Defendant NEW YORK CITY POLICE DEPARTMENT.

53. That, at all times hereinafter mentioned, Defendant DETECTIVE BRIAN MCCARTHY was a detective for Defendant CITY OF NEW YORK.

54. That, at all times hereinafter mentioned, Defendant DETECTIVE BRIAN MCCARTHY was a detective for Defendant NEW YORK CITY POLICE DEPARTMENT.

55. That, on September 18, 2020 at approximately 5:05PM, Plaintiff was arrested.

56. That, on September 18, 2020 at approximately 5:05PM, Plaintiff was arrested based upon the investigation of Defendant CITY OF NEW YORK.

57. That, on September 18, 2020 at approximately 5:05PM, Plaintiff was arrested based upon the investigation of Defendant NEW YORK CITY POLICE DEPARTMENT.

58. That, on September 18, 2020 at approximately 5:05PM, Plaintiff was arrested based upon the investigation of Defendant DETECTIVE STEPHEN PROSCIA.

59. That, on September 18, 2020 at approximately 5:05PM, Plaintiff was arrested based upon the investigation of Defendant SERGEANT AALOK KANTHARIA.

60. That, on September 18, 2020 at approximately 5:05PM, Plaintiff was arrested based upon the investigation of Defendant DETECTIVE ERIC GUTIERREZ.

61. That, on September 18, 2020 at approximately 5:05PM, Plaintiff was arrested based upon the investigation of Defendant POLICE OFFICER JAIR FLORES.

62. That, on September 18, 2020 at approximately 5:05PM, Plaintiff was arrested based upon the investigation of Defendant DETECTIVE BRIAN MCCARTHY.

63. That, on September 18, 2020 at approximately 5:05PM, Plaintiff was arrested based upon the directives of Defendant CITY OF NEW YORK.

64. That, on September 18, 2020 at approximately 5:05PM, Plaintiff was arrested based upon the directives of Defendant NEW YORK CITY POLICE DEPARTMENT.

65. That, on September 18, 2020 at approximately 5:05PM, Plaintiff was arrested based upon the directives of Defendant DETECTIVE STEPHEN PROSCIA.

66. That, on September 18, 2020 at approximately 5:05PM, Plaintiff was arrested based upon the directives of Defendant SERGEANT AALOK KANTHARIA.

67. That, on September 18, 2020 at approximately 5:05PM, Plaintiff was arrested based upon the directives of Defendant DETECTIVE ERIC GUTIERREZ.

68. That, on September 18, 2020 at approximately 5:05PM, Plaintiff was arrested based upon the directives of Defendant POLICE OFFICER JAIR FLORES.

69. That, on September 18, 2020 at approximately 5:05PM, Plaintiff was arrested based upon the directives of Defendant DETECTIVE BRIAN MCCARTHY.

70. That, on September 18, 2020 at approximately 5:05PM, Plaintiff was arrested based upon the determinations of Defendant CITY OF NEW YORK.

71. That, on September 18, 2020 at approximately 5:05PM, Plaintiff was arrested based upon the determinations of Defendant NEW YORK CITY POLICE DEPARTMENT.

72. That, on September 18, 2020 at approximately 5:05PM, Plaintiff was arrested based upon the determinations of Defendant DETECTIVE STEPHEN PROSCIA.

73. That, on September 18, 2020 at approximately 5:05PM, Plaintiff was arrested based upon the determinations of Defendant SERGEANT AALOK KANTHARIA.

74. That, on September 18, 2020 at approximately 5:05PM, Plaintiff was arrested based upon the determinations of Defendant DETECTIVE ERIC GUTIERREZ.

75. That, on September 18, 2020 at approximately 5:05PM, Plaintiff was arrested based upon the determinations of Defendant POLICE OFFICER JAIR FLOREZ.

76. That, on September 18, 2020 at approximately 5:05PM, Plaintiff was arrested based upon the determinations of Defendant DETECTIVE BRIAN MCCARTHY.

77. That, on September 18, 2020 at approximately 5:05PM, Plaintiff was arrested based upon the improper search and/or seizure of Defendant CITY OF NEW YORK.

78. That, on September 18, 2020 at approximately 5:05PM, Plaintiff was arrested based upon the improper search and/or seizure of Defendant NEW YORK CITY POLICE DEPARTMENT.

79. That, on September 18, 2020 at approximately 5:05PM, Plaintiff was arrested based upon the improper search and/or seizure of Defendant DETECTIVE STEPHEN PROSCIA.

80. That, on September 18, 2020 at approximately 5:05PM, Plaintiff was arrested based upon the improper search and/or seizure of Defendant SERGEANT AALOK KANTHARIA.

81. That, on September 18, 2020 at approximately 5:05PM, Plaintiff was arrested based upon the improper search and/or seizure of Defendant DETECTIVE ERIC GUTIERREZ.

82. That, on September 18, 2020 at approximately 5:05PM, Plaintiff was arrested based upon the improper search and/or seizure of Defendant POLICE OFFICER JAIR FLOREZ.

83. That, on September 18, 2020 at approximately 5:05PM, Plaintiff was arrested based upon the improper search and/or seizure of Defendant DETECTIVE BRIAN MCCARTHY.

84. That, on September 18, 2020, while still in custody, Plaintiff was interrogated by Defendant DETECTIVE STEPHEN PROSCIA.

85. That, on September 18, 2020, while still in custody, Plaintiff was interrogated by Defendant DETECTIVE STEPHEN PROSCIA at the 70th Precinct, located at 154 Lawrence Avenue, Brooklyn, New York.

86. That, on September 18, 2020, while still in custody, Plaintiff was interrogated by Defendant SERGEANT AALOK KANTHARIA.

87. That, on September 18, 2020, while still in custody, Plaintiff was interrogated by Defendant SERGEANT AALOK KANTHARIA at the 70th Precinct, located at 154 Lawrence Avenue, Brooklyn, New York.

88. That, on September 18, 2020, while still in custody, Plaintiff was interrogated by Defendant DETECTIVE ERIC GUTIERREZ.

89. That, on September 18, 2020, while still in custody, Plaintiff was interrogated by Defendant DETECTIVE ERIC GUTIERREZ at the 70th Precinct, located at 154 Lawrence Avenue, Brooklyn, New York.

90. That, on September 18, 2020, while still in custody, Plaintiff was interrogated by Defendant POLICE OFFICER JAIR FLORES.

91. That, on September 18, 2020, while still in custody, Plaintiff was interrogated by Defendant POLICE OFFICER JAIR FLORES at the 70th Precinct, located at 154 Lawrence Avenue, Brooklyn, New York.

92. That, on September 18, 2020, while still in custody, Plaintiff was interrogated by Defendant DETECTIVE BRIAN MCCARTHY.

93. That, on September 18, 2020, while still in custody, Plaintiff was interrogated by Defendant DETECTIVE BRIAN MCCARTHY at the 70th Precinct, located at 154 Lawrence Avenue, Brooklyn, New York.

94. That, on September 18, 2020, Plaintiff was indicted and charged with unlawful possession of a gun (commencing a criminal action under Indictment Number 73421/2021).

95. That, following his indictment on September 18, 2020, Plaintiff was then held at Central Booking.

96. That, following his indictment on September 18, 2020, Plaintiff was then held at Central Booking for a period of approximately three weeks.

97. That, following being charged on September 18, 2020, Plaintiff was then held at Central Booking.

98. That, following being charged on September 18, 2020, Plaintiff was then held at Central Booking for a period of approximately three weeks.

99. That, following the criminal hearing on September 18, 2020, Plaintiff was then held at Central Booking.

100. That, following the criminal hearing on September 18, 2020, Plaintiff was then held at Central Booking for a period of approximately three weeks.

101. That, following the criminal hearing on September 18, 2020, Plaintiff was then falsely imprisoned at Central Booking.

102. That, following the criminal hearing on September 18, 2020, Plaintiff was then falsely imprisoned at Central Booking for a period of approximately three weeks.

103. That, following his indictment on September 18, 2020, Plaintiff was then held at Manhattan Detention Center.

104. That, following his indictment on September 18, 2020, Plaintiff was then held at Manhattan Detention Center for a period of approximately three weeks.

105. That, following being charged on September 18, 2020, Plaintiff was then held at Manhattan Detention Center.

106. That, following being charged on September 18, 2020, Plaintiff was then held at Manhattan Detention Center for a period of approximately three weeks.

107. That, following the criminal hearing on September 18, 2020, Plaintiff was then held at Manhattan Detention Center.

108. That, following the criminal hearing on September 18, 2020, Plaintiff was then held at Manhattan Detention Center for a period of approximately three weeks.

109. That, following the criminal hearing on September 18, 2020, Plaintiff was then falsely imprisoned at Manhattan Detention Center.

110. That, following the criminal hearing on September 18, 2020, Plaintiff was then falsely imprisoned at Manhattan Detention Center for a period of approximately three weeks.

111. That, as a result of the arrest and indictment, a criminal action was commenced against Plaintiff (under Indictment Number 73421/2021).

112. That, on June 30, 2022, Plaintiff's criminal case was dismissed (under Indictment Number 73421/2021).

113. That, the criminal action by Defendant CITY OF NEW YORK against Plaintiff was ultimately dismissed.

114. That, the criminal action by Defendant CITY OF NEW YORK against Plaintiff was dismissed on June 30, 2022.

115. That, the criminal action by Defendant NEW YORK CITY POLICE DEPARTMENT against Plaintiff was ultimately dismissed.

116. That, the criminal action by Defendant NEW YORK CITY POLICE DEPARTMENT against Plaintiff was dismissed on June 30, 2022.

117. That, the criminal action against Plaintiff was commenced due to the investigation conducted by Defendant DETECTIVE STEPHEN PROSCIA.

118. That, the criminal action commenced due to the investigation conducted by Defendant DETECTIVE STEPHEN PROSCIA against Plaintiff was ultimately dismissed.

119. That, the criminal action commenced due to the investigation conducted by Defendant DETECTIVE STEPHEN PROSCIA against Plaintiff was ultimately dismissed on June 30, 2022.

120. That, the criminal action against Plaintiff was commenced due to the investigation conducted by Defendant SERGEANT AALOK KANTHARIA.

121. That, the criminal action commenced due to the investigation conducted by Defendant SERGEANT AALOK KANTHARIA against Plaintiff was ultimately dismissed.

122. That, the criminal action commenced due to the investigation conducted by Defendant SERGEANT AALOK KANTHARIA against Plaintiff was ultimately dismissed on June 30, 2022.

123. That, the criminal action against Plaintiff was commenced due to the investigation conducted by Defendant DETECTIVE ERIC GUTIERREZ.

124. That, the criminal action commenced due to the investigation conducted by Defendant DETECTIVE ERIC GUTIERREZ against Plaintiff was ultimately dismissed.

125. That, the criminal action commenced due to the investigation conducted by Defendant DETECTIVE ERIC GUTIERREZ against Plaintiff was ultimately dismissed on June 30, 2022.

126. That, the criminal action against Plaintiff was commenced due to the investigation conducted by Defendant POLICE OFFICER JAIR FLORES.

127. That, the criminal action commenced due to the investigation conducted by Defendant POLICE OFFICER JAIR FLORES against Plaintiff was ultimately dismissed.

128. That, the criminal action commenced due to the investigation conducted by Defendant POLICE OFFICER JAIR FLORES against Plaintiff was ultimately dismissed on June 30, 2022.

129. That, the criminal action against Plaintiff was commenced due to the investigation conducted by Defendant DETECTIVE BRIAN MCCARTHY.

130. That, the criminal action commenced due to the investigation conducted by Defendant DETECTIVE BRIAN MCCARTHY against Plaintiff was ultimately dismissed.

131. That, the criminal action commenced due to the investigation conducted by Defendant DETECTIVE BRIAN MCCARTHY against Plaintiff was ultimately dismissed on June 30, 2022.

132. That, the criminal action against Plaintiff was ultimately dismissed.

133. That, the criminal action against Plaintiff was dismissed on June 30, 2022.

134. That the criminal action commenced against Plaintiff was terminated favorably to the Plaintiff.

135. That the criminal action commenced against Plaintiff was terminated in a manner not adverse to the Plaintiff.

136. That, as a result of the foregoing, Plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

AS AND FOR A FIRST CAUSE OF ACTION

137. Each and every one of the above allegations are repeated and realleged as part of this cause of action, and such allegations are repeated and realleged with the same force and effect, as though each were fully set forth at length herein.

138. That Defendants' actions resulted in the commencement of a criminal judicial proceeding against Plaintiff.

139. That Defendants were responsible for said criminal judicial proceeding being instituted against Plaintiff.

140. That Defendants caused said criminal judicial proceeding to be instituted against Plaintiff.

141. That said criminal proceeding was terminated favorably to Plaintiff.

142. That said criminal proceed was terminated in a manner not adverse to Plaintiff.

143. That there was a lack of reasonable cause for the aforesaid criminal prosecution against Plaintiff.

144. That there was a lack of probable cause for the aforesaid criminal prosecution against Plaintiff.

145. That Defendants acted maliciously towards Plaintiff.

146. That, based upon the above, Defendants acted maliciously towards Plaintiff.

147. That Plaintiff suffered damages as a proximate result of the aforesaid malicious prosecution.

148. That, based upon the above, Plaintiff was caused to incur legal fees.

149. That, based upon the above, Plaintiff was caused to undergo emotional distress.

150. That, by reason of the foregoing, Plaintiff was caused irreparable harm.

151. That, based upon the above, Plaintiff was falsely arrested.

152. That, based upon the above, Plaintiff was falsely imprisoned.

153. That, based upon the above, Plaintiff was falsely held against his will.

154. That, based upon the above, Plaintiff was incarcerated at Central Booking for a period of approximately three weeks.

155. That, based upon the above, Plaintiff was incarcerated at Manhattan Detention Center for a period of approximately three weeks.

156. That, as a result of the foregoing, Plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

AS AND FOR A SECOND CAUSE OF ACTION – FALSE IMPRISONMENT

157. Each and every one of the above allegations are repeated and realleged as part of this cause of action, and such allegations are repeated and realleged with the same force and effect, as though each were fully set forth at length herein.

158. That the Defendants' actions described above and incorporated into this cause of action resulted in an arrest of the Plaintiff against his will.

159. That the Defendants' actions described above and incorporated into this cause of action resulted in the detention of the Plaintiff against his will.

160. That the Defendants' actions described above and incorporated into this cause of action amounted to a lack of proper legal authority for such arrest and/or detention.

161. That the Defendants' actions described above and incorporated into this cause of action amounted to a lack of proper legal justification for such arrest and/or detention.

162. That, based upon the above, Plaintiff was falsely arrested.

163. That, based upon the above, Plaintiff was falsely imprisoned.

164. That, based upon the above, Plaintiff was falsely held against his will.

165. That, as a result of the foregoing, Plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

AS AND FOR A THIRD CAUSE OF ACTION - NEGLIGENCE

166. Each and every one of the above allegations are repeated and realleged as part of this cause of action, and such allegations are repeated and realleged with the same force and effect, as though each were fully set forth at length herein.

167. That Defendants owed a duty to the public at large.

168. That Defendants owed a duty to this Plaintiff.

169. That Defendants owed a special duty to this Plaintiff.

170. That Defendants owed a duty to not provide false information to arresting police officers.

171. That Defendants owed a duty to this Plaintiff to not provide false information to arresting police officers.

172. That Defendants breached their duty.

173. That Defendants breached their duty to this Plaintiff.

174. That Defendants fell below a reasonable standard of care.

175. That Defendants fell below a reasonable standard of care when providing false information to police officers.

176. That Defendants fell below a reasonable standard of care in the training of its employees.

177. That Defendants fell below a reasonable standard of care in the hiring its employees.

178. That Defendants fell below a reasonable standard of care in administering its business protocols and procedures.

179. That the foregoing incident and the resulting damages to Plaintiff were caused solely by reason of the carelessness, negligence, wanton and willful disregard on the part of Defendants, and without any negligence on the part of Plaintiff contributing thereto.

180. That Defendants owed Plaintiff a duty to act reasonably under the circumstances.

181. That Defendants' failure to act reasonably resulted in harm to the Plaintiff herein.

182. That, based upon the above, Plaintiff was caused to incur significant financial loss.

183. That, based upon the above, Plaintiff was caused to incur legal fees.

184. That, based upon the above, Plaintiff was caused to undergo emotional distress.

185. That, by reason of the foregoing, Plaintiff was caused irreparable harm.

186. That, as a result of the foregoing, Plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

**AS AND FOR A FOURTH CAUSE OF ACTION – NEGLIGENT INFLICTION OF
EMOTIONAL DISTRESS**

187. Each and every one of the above allegations are repeated and realleged as part of this cause of action, and such allegations are repeated and realleged with the same force and effect, as though each were fully set forth at length herein.

188. That, Defendants, by their actions, negligently inflicted emotional distress upon the Plaintiff.

189. That as a result of the foregoing, Plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

AS AND FOR A FIFTH CAUSE OF ACTION – NEGLIGENT HIRING / TRAINING

190. Each and every one of the above allegations are repeated and realleged as part of this cause of action, and such allegations are repeated and realleged with the same force and effect, as though each were fully set forth at length herein.

191. That the agents, servants, employees, representatives and/or police officers of Defendant CITY OF NEW YORK and/or Defendant NEW YORK CITY POLICE DEPARTMENT were acting within the scope of their employment at the time of the incident.

192. That Defendant CITY OF NEW YORK and/or Defendant NEW YORK CITY POLICE DEPARTMENT were negligent and careless in failing to exercise reasonable care and diligence in the hiring, training and supervision of its agents, servants, employees, representatives

and/or police officers who arrested, detained, falsely imprisoned, and/or maliciously prosecuted the Plaintiff.

193. That by reason of the foregoing negligence and lack of due care by the Defendant CITY OF NEW YORK and/or Defendant NEW YORK CITY POLICE DEPARTMENT, Plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

WHEREFORE, Plaintiff demands judgment against Defendants in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action, together with the costs and disbursements of this action, and with interest from the date of this accident.

Dated: New York, New York
September 28, 2023

Yours, etc.,

By: ROTH & KHALIFE, LLP,
Ronald H. Roth
RONALD H. ROTH, ESQ.,
Attorney(s) for Plaintiff(s)
14 Wall Street, Suite 1603
New York, New York 10005
Telephone: 212-608-3015
Facsimile: 212-208-2177

ATTORNEY'S VERIFICATION

The undersigned, an attorney duly admitted to practice law in the Courts of the State of New York, affirms the following to be true, under the penalties of perjury:

That your affirmant is the attorney-of-record for Plaintiff(s) in the within action; your affirmant has read the foregoing **SUMMONS AND COMPLAINT** and knows the contents thereof; that the same is true to your affirmant's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters, your affirmant believes those to be true; that the reason this verification is made by your affirmant and not by Plaintiff(s) is that Plaintiff(s) is/are currently outside of the county in which your Affirmant maintains his/her offices.

The grounds for your Affirmant's belief as to all matters not stated upon his/her knowledge are investigations which he/she has made or has caused to be made concerning the subject matter of this action, and statements of parties or witnesses herein.

Dated: New York, New York
September 28, 2023

Yours, etc.,

ROTH & KHALIFE, LLP,

By: *Ronald H. Roth*

RONALD H. ROTH, ESQ.,

Attorney(s) for Plaintiff(s)

14 Wall Street, Suite 1603

New York, New York 10005

Telephone: 212-608-3015

Facsimile: 212-208-2177

Index No.: _____

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

ANTOINE VINES,

Plaintiff(s),

-against-

CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT,
DETECTIVE STEPHEN PROSCIA,
SERGEANT AALOK KANTHARIA,
DETECTIVE ERIC GUTIERREZ,
POLICE OFFICER JAIR FLORES, and
DETECTIVE BRIAN MCCARTHY

Defendant(s).

SUMMONS AND COMPLAINT

ROTH & KHALIFE, LLP
Attorney(s) for Plaintiff(s)
14 Wall Street, Suite 1603
New York, New York 10005
(212) 608-3015